

Sushil Kumar vs Minto Kumari on 15 September, 2011

Author: Mohammad Rafiq

Bench: Mohammad Rafiq

IN THE HIGH COURT OF JUDICATURE FOR
RAJASTHAN
BENCH AT JAIPUR.

O R D E R

S.B. CIVIL MISC.APPEAL NO.475/1999.

Sushil Kumar
Vs.
Minto Kumari

Date of Order :- September 15, 2011.

HON'BLE MR.JUSTICE MOHAMMAD RAFIQ
Shri R.P. Garg for the appellant.
Shri Prashant Chahar for the respondent.

Reportable
BY THE COURT:-

1) This appeal has been filed by appellant-Sushil Kumar challenging the order of the learned Additional District Judge No.1, Bharatpur dated 17/3/1999 whereby, his petition seeking divorce filed under Section 12(1)(d) of the Hindu Marriage Act, 1955 (for short, the 'Act of 1955') was rejected. The ground on which the petition of divorce was filed was that marriage of appellant and respondent solemnized on 8/5/1993 and respondent-wife gave birth to a male child on 14/10/1993 within five months & six days of the marriage. Respondent was thus pregnant at the time of marriage from some other person than appellant. As such, prayer was made for declaring their marriage a nullity in terms of Section 12(d) of the Act of 1955.

2) Appellant in support of his case, got the statements of AW1 Sushil Kumar himself, AW2 Dr.Sohan Lal and AW3 Pappu recorded whereas, respondent recorded her own statement as NAW1 Minto Kumari, NAW2 Dwarka Prasad and NA3 Sita Ram in support of her case. Learned Additional District Judge dismissed the petition by the impugned order.

3) Shri R.P. Garg, learned counsel for the appellant has at the outset invited attention of the court towards the order passed by this Court on 1/2/2011 by which appellant, respondent and son Sheel

Kumar were directed to appear before the Superintendent of SMS Hospital, Jaipur on 21/2/2011 and the Superintendent of that Hospital was directed to get the DNA Test of the aforesaid three persons through doctor and submit report of DNA test to the court. Doctor opined in that report that Sheel Kumar was not the biological son of appellant Sushil Kumar.

4) Shri Prashant Chahar, learned counsel for the respondent has opposed the appeal and submitted that evidence of the DNA, which has been submitted before this court cannot be relied to annul the marriage by ignoring the overwhelming evidence, which has been produced by her before the learned Additional District Judge No.1, Bharatpur. In this connection, learned counsel for the respondent has referred to the finding recorded by the trial court on Issue No.2.

5) Upon hearing learned counsel for the parties and perusing the impugned order, I find that Issue No.2 though was framed to the effect that whether there was any possibility of respondent coming into the contact of the appellant prior to their marriage and thereby getting conceived. Finding on that issue may have been recorded by the learned trial court in favour of the respondent but in view of the scientific report of DNA test, now it has been categorically proved that male child Sheel Kumar is not the biological son of appellant-Sushil Kumar, although, report states that he happens to be biological son of the respondent. DNA test was extracted from all the blood samples of the three, appellant-Sushil Kumar, respondent-Minto Kumari and Sheel Kumar. The result of examination as given in the report dated 1/3/2011 and produced before this court, reads as under:-

RESULT OF EXAMINATION (TABLE 1) The DNA profile of source of exhibit No.2 (Sheel Kumar) is matching with the DNA profile of source of exhibit No.1 (Kumari Minto Devi) as all the maternal alleles shown in blue are present in the profile of Sheel Kumar. However, the DNA profile of source of exhibit No.2 (Sheel Kumar) is not matching with the DNA profile of source of exhibit No.3 (Sushil Kumar) as the alleles shown in read in the profile of Sheel Kumar are not present in the DNA profile of Sushil Kumar. CONCLUSION The DNA test performed on the exhibits provided is sufficient to conclude that:

1. The source of exhibit No.2 (Sheel Kumar) is not the biological son of the source of exhibit 3 (Sushil Kumar).
2. The source of exhibit No.1 (Kumari Minto Devi) is the biological mother of the source of exhibit 2 (Sheel Kumar).

6) In view of above, it has to be held that neither the appellant is biological father of the male child Sheel Kumar nor Sheel Kumar is biological son of the appellant, although respondent-Minto Kumari certainly is biological mother of male child Sheel Kumar.

7) The appeal therefore deserves to succeed and is accordingly allowed. The order passed by the learned Additional District Judge No.1, Bharatpur dated 17/3/1999 is quashed and set-aside. Marriage of appellant-Sushil Kumar with respondent-Minto Kumari solemnized on 8/5/1993 is declared as nullity as per Section 12(d) of the Hindu Marriage Act, 1955.

(MOHAMMAD RAFIQ), J.

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